

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL APPELLATE JURISDICTION)

First Appeal No. 76 of 2007

In the matter of:

Present
Mr. Justice Mamnoon Rahman

And
Mr. Justice Ashish Ranjan Das

Secretary, Moulvi Khawja Abdullah Welfare Trust.
....Appellant.

-Vs-
Khawja Abdul Gani and another.
...Respondents.

Mr. S.R.M. Lutfor Rahman, Adv. with
Mr. Khalilur Rahman, Adv.
...For the appellant.

Mr. Probir Neogi, Adv. with
Mr. Mizanul Huq Chowdhury, Adv.
...For the respondents.

Heard on: 05.02.2018, 19.02.2018, 20.02.2018,
27.02.2018, 29.02.2018, 06.03.2018

And
Judgment on: The 11th April, 2018

Mamnoon Rahman, J:

This appeal is directed against the judgment and decree dated 31.01.2007 (decree signed on 06.02.2007) passed by the learned Joint District Judge, Additional Court, Dhaka in Title Suit No. 33 of 2006 decreeing the suit in favour of the plaintiff-respondent the defendant No. 2-appellant.

The short facts relevant for the disposal of this appeal, is that, the respondent as plaintiff instituted Title Suit No. 33 of 2006 in the court of Joint District Judge, Additional Court, Dhaka impleading the appellant as defendant for declaration of title further declaration that the judgment and decree passed in Title Suit No. 130 of 1956 is not binding upon the plaintiff as well as for other reliefs. The case of the plaintiff-defendant, is that, father of Khaja Abdul Aziz Atikullah and

Atikullah's another brother is Alimulla the suit property is a pond and the same was enjoyed by the heirs of Alimullah as well as the inhabitants of Nawab Bari. The property was recorded in the name of the heirs of Alimullah in C.S. record. In the year 1998 since the defendant No. 1 claimed the ownership of the said pond the plaintiff came to know about the Title Suit No. 130 of 1957 and since the said decree and the notice clouded the right and title of the plaintiff the plaintiff filed the suit for prayers mentioned in the plaint. The defendant Nos. 2 and 1 contested the suit by filing separate written statement denying all the material allegations made in the plaint. The case of the defendant No. 2 is that one Mosammat Sara Kulsum instituted a suit for declaration of title and permanent injunction being Title Suit No. 130 of 1957 impleading the Khaja Habibullah and others as defendants. In the said suit the court of wards also represented and on compromise with court of wards decree was passed on 03.11.1959. In the said deed of compromise the ownership of the plaintiff and others were acknowledged and it has been decided that there will be separate Trust for the said pond and the same was also time to time absolute by different authorities. The case of the defendant No. 1 is that the Nawab family was established by Mowlvi Abdullah who died leaving four sons and since there was a dispute among the said sons suit was decreed being Title Suit No. 130 of 1957. There was also several litigations regarding the property in question along with other and the plaintiff concealing the factual aspects and filed the suit.

The trial court framed as many as five issues and proceeded with the suit. During trial the plaintiff adduced two witnesses and the defendant adduced one witness. Both the parties adduced documentary evidences which were duly marked as exhibits. The trial court after hearing the parties and considering the facts and circumstances vide the impugned judgment and decree decreed the suit. Being aggrieved by and dissatisfied with the impugned judgment and decree the present appellant moved before this court by way of appeal.

Mr. S.R. Lutfor Rahman, the learned Advocate appearing on behalf of the plaintiff-appellant submits that the court below without applying its judicial mind and without considering the facts and circumstances most illegally and in an arbitrary manner passed the impugned judgment and decree which requires interference by this court. He submits that in the present case in hand the suit itself is not maintainable because of the nature and character of the plaintiff as much as the relief prayed. Admittedly, the suit property is within the controlled of court of Wards and also the defendant-appellant tried to recover the possession by publishing notice by dint of decree of the court of law. He further submits that though the suit is of representative nature but the relevant provisions of the Code of Civil Procedure, 1908 or filing a representative suit has not been reflected. He further submits that the trial court without any effective material and evidence decreed the suit relates to a disputed property as much the plaintiffs concealed previous litigation relates to the suit property.

Mr. Probir Neogi, the learned senior counsel appearing on behalf of the defendant-respondents vehemently opposes the appeal. He submits that the court below on proper appreciation of the facts and circumstances, evidence both oral and documentary has decreed the suit which requires no interference by this court. The learned Advocate placed the impugned judgment and decree as well as LC records and submits that the trial court on proper appreciation of the evidence both oral and documentary came to a clear conclusion that the plaintiff has right and title over the suit property. Regarding the cause of action he submits that on the basis of the newspaper advertisement the plaintiff came to know about the fictitious decree and filed the suit as much as produced all the relevant papers and documents in support of their documents. He further submits that as per the provision of Order 7 rule 7 of the Code of Civil Procedure, 1908 in an appropriate case the court can give a particular desired relief to the plaintiff even though it was not specifically asked for in the plaint. He further submits that also this provision of the Code empowers the court to give relief to the plaintiff as he is found entitled to but omits to pray.

On perusal of the same, it transpires that the plaintiff-respondent filed the Suit impleading the appellant and others as defendants for declaration of title, confirmation of possession as well as further declaration that the judgment and decree passed in Title Suit No. 130 of 1957 is not binding upon the plaintiffs. It further transpires that the defendant Nos. 2 and 1 contested the suit by filing separate written statement denying all the material allegations made in the plaint.

The basic claim of the plaintiffs, are that, they are the heirs of the Dhaka Nawab Family and owner and possessor of the suit property and they were enjoying the same peacefully without any interference or hindrance. All on a sudden the plaintiffs came to know about a newspaper advertisement regarding the recovery of the possession of the suit property and on query came to know about the decree passed in the aforesaid suit and finding no other alternative filed the instant suit. It also transpires that the plaintiff adduced two oral evidences and also documentary evidence which were duly marked as Exhibits. The defendants also adduced two witnesses and also documentary evidence which were duly marked as Exhibits.

On perusal of the judgment and decree, it transpires that the trial court came to a conclusion there is no defect of parties as because the plaintiff filed the suit against the appropriate person. It also transpires that the cause of action was duly proved and within time. On perusal of the papers and documents, it transpires that the plaintiff filed the suit ultimately by representative capacity and the trial court on proper appreciation of the facts and circumstances that the plaintiff over the possession under Order 1 rule 8 of the Code of Civil Procedure, 1908.

It further transpires that the plaintiff was the senior member of the family who are admittedly the owner of the property in question and as per Exhibit-1 the property was recorded in R.S. Khatian in the name of Khaja Abdul Goni. In C.S. and S.A. record though the property is mentioned as Golpukur but the ownership and possession lies with the plaintiff and their family for long. While dealing with the

case in hand the trial court categorically examined the judgment and decree passed in Title Suit No. 130 of 1957 which was disposed of on the basis of a compromise deed. But it transpires that the compromise was made regarding the properties which are beyond the schedule of the suit property. It also transpires that the defendants failed to prove that they being a receiver taking care or in possession of the property in question rather the trial court came to a conclusion that the plaintiff was the receiver of the property mentioned in the schedule. It also transpires from the judgment and decree passed by the trial court that in the plaint of Title Suit No. 130 of 1957 the schedule includes houses within the Ahsan Manjil which shows that the same does not attract the pond in question. It also transpires from the judgment passed by the trial court that the trial court considered the power of the Manager of Court of Wards regarding execution of the compromise petition wherein the Arbitration Court of Dhaka rejected the plea. It further transpires that while adjudicating the suit in hand the trial court came to a conclusion that the Court of Wards failed to give the expenses and income regarding the property in question and whether the mortgage was adjusted has not been proved by the defendants.

It further transpires that the trial court considered the possession in news of the pond in question by the plaintiff and heirs of Ali Mia and the same was maintained during cross-examination. In the present case in hand the defendant miserably failed to prove their possession in the suit property rather on meticulous perusal of the evidence both oral and documents it transpires that the plaintiff and his predecessors in

interest as well as heirs are enjoying the same. The trial court also came to a conclusion which runs as follows;

সর্বশেষে বলা যায় যে, বাদী তথা নবাব আহসানউল্যাহর ওয়ারিশদের পক্ষে বিরোধী সম্পত্তিতে স্বত্ববান দখলকার আছে। দেওয়ানী ১৩০/৫৭ মামলায় বাদী বা তাহার পূর্ব বর্তী সোলে নামা করে নাই বিধায় উক্ত সোলে সুত্রে রায় ও সুনিদিষ্ট সোলে ডিক্রি দ্বারা সুনিদিষ্ট প্রতিকার আইনের ৪৩ ধারায় বাধ্য নহে। বাদী তথা বাদীগনের বিরোধী পক্ষের দখল স্থিরতর ক্রমে ঘোষণা পাইতে পারে বলিয়া সাব্যস্ত হইল।

So, it transpires that the court below on proper appreciation of the facts and circumstances evidence both oral and documentary passed the impugned judgment and decree which requires no interference by this court.

Accordingly, the instant appeal is dismissed without any order as to cost. The impugned judgment and decree passed by the court below is hereby affirmed.

Send down the lower courts record with a copy of the judgment to the concerned court below, at once.

(Mamnoon Rahman,J:)

I agree.

(Ashish Ranjan Das,J:)